

Court No. - 37

Case :- WRIT - C No. - 39633 of 2017

Petitioner :- Mohar Singh

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Bharat Singh

Counsel for Respondent :- C.S.C.,Shivam Yadav

Hon'ble Amreshwar Pratap Sahi,J.

Hon'ble Rajiv Lochan Mehrotra,J.

Heard learned counsel for the petitioner.

The petitioner is a defaulter in payment of electricity bills in respect of certain consumption of electricity which the petitioner alleges to have been unlawfully enforced on him.

Learned counsel for the Electricity Department contends that such disputed questions of fact can not be raised through a writ petition and it is open to the petitioner to approach the Executive Engineer concerned in term of Clause 6.5 of the U.P.Electricity Supply Code, 2005. Apart from this if the amount is sought to be deposited by the petitioner then he can approach the Executive Engineer himself in terms of Clause 6.14 of the aforesaid Code, 2005 for fixing of installments.

The writ petition is disposed off with the said observations leaving it open to the petitioner to approach the Executive Engineer for any such relief.

Order Date :- 30.8.2017

R./